

Calendar Lines 4-5

Case Name: *Eric F. Hartman v. Lynn Dornon Kuehn*

Case No.: 23CV427904

Defendant Lynn Dornon Kuehn brings two motions for sanctions against plaintiff Eric F. Hartman for failure to comply with earlier discovery orders of the court, dated July 25, 2024 and September 10, 2024, which granted Kuehn's motions to compel in part. Kuehn requests terminating, evidentiary, and issue sanctions in each motion. In addition, she requests monetary sanctions of \$5,492.00 for failure to comply with the July 25, 2024 order and \$2,934.59 for failure to comply with the September 10, 2024 order.⁶

As an initial matter, the court observes that there was no reason for these motions to be filed separately (on October 29, 2024 and November 4, 2024), given the inordinate amount of repetition in the papers supporting each motion. These motions could easily have been filed as a single motion, and should have been.

Second, there is absolutely no basis for evidentiary or issue sanctions to be imposed here, much less terminating sanctions. The court did not even order monetary sanctions in connection with the two prior motions, and so for Kuehn to jump straight to non-monetary sanctions in these motions is singularly unreasonable. (See *J.W. v. Watchtower Bible & Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169 [“The discovery statutes thus ‘evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’ [Citation.] Although in extreme cases a court has the authority to order a terminating sanction as a first measure [citations], a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.”] [quoting *Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 604].)

Third, it appears that Hartman did provide supplemental responses to most of the discovery requests at issue in the prior motions, albeit belatedly in some instances. Kuehn's dissatisfaction with the substance of these supplemental responses is not a basis for the imposition of sanctions. Rather, if there is or was some ongoing deficiency in Hartman's responses, Kuehn should have brought a motion to compel *further responses*. To the extent that Kuehn believes that Hartman has not made a complete production of responsive and non-privileged documents (or videos), she should have brought a motion to compel *compliance*. Such motions could have been *accompanied* by a request for sanctions, but instead of bringing such motions, Kuehn has instead focused solely on obtaining sanctions against Hartman, with a primary focus on obtaining terminating sanctions. This is procedurally backwards.

Fourth, although it is somewhat difficult to discern from both sides' discursive and disorganized papers, it appears that there is still a subset of discovery requests to which Hartman has not responded, notwithstanding the court's second order. These are Requests for Production Nos. 31-37. According to Kuehn, as of February 18, 2025, one week before the hearing on this motion, Hartman “has not made any further response to the second set of requests to produce, in violation of this second [o]rder to compel further discovery responses.”

⁶ On its own motion, the court takes judicial notice of the July 25, 2024 and September 10, 2024 orders. (Evid. Code, § 452, subd. (d).)

(Reply in Support of Second Motion for Sanctions, p. 2:16-17.) No one has attached a copy of any supplemental responses to these requests. Accordingly, because Hartman still has not complied in full with the September 10, 2024 order, the court will grant Kuehn's request for monetary sanctions *in part*, in the amount of **\$1,110.00** (representing three hours at \$350/hour plus the \$60 filing fee for the second motion). Hartman is directed to pay this amount to Kuehn within 30 days of notice of entry of this order.

Finally, the court denies Kuehn's three requests for judicial notice—filed with each of the opening papers, as well as with the replies—attaching hundreds of pages of irrelevant documents. The court finds that these documents have no bearing on the outcome of the present motions.

The first motion for sanctions is DENIED. The second motion for sanctions is GRANTED IN PART and DENIED IN PART. The court DENIES Hartman's request for monetary sanctions against Kuehn and Kuehn's counsel.

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Calendar Line 6

Case Name: *Leonel F. Veliz Gutierrez v. April Fitz*

Case No.: 24CV435382

This is a motion by plaintiff Leonel Veliz Gutierrez for requests for admissions (“RFAs”) to be deemed admitted, based on defendant April Fitz’s failure to provide timely responses. Rather than file a timely response to the motion, Fitz has now filed a competing “motion for relief from waiver of admissions,” dated February 13, 2025, which is three days after the deadline to have opposed Veliz Gutierrez’s motion. In her motion for relief, Fitz states that she has now served responses to the RFAs. She requests relief from any waiver based on “inadvertence, mistake, or excusable neglect.”

Both Veliz Gutierrez and Fitz are representing themselves in this case.

Because it appears that Fitz has provided RFA responses before the date of hearing on Veliz Gutierrez’s motion, the court has no discretion but to deny the motion. (See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776-778; see also Code Civ. Proc., § 2033.280, subd. (c).) At the same time, section 2033.280, subdivision (c), makes it clear that imposition of a monetary sanction against the late-responding party is “mandatory.” Here, Veliz Gutierrez has requested a monetary sanction of \$14.41, representing the costs of having had to file his discovery motion. The court finds this amount to be reasonable and orders Fitz to pay this amount to Veliz Gutierrez within 15 days of this order. The purpose of discovery sanctions is compensatory, not punitive.

The motion is DENIED; the request for monetary sanctions is GRANTED. Because this order renders Fitz’s competing motion for relief from waiver moot, the court takes that motion (currently calendared for June 24, 2025) OFF CALENDAR.

It is so ordered.

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